TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
MAY 20, 2019
MINUTES

Green arrows in the minutes are hyperlinks to the recording

Attachment 1—Staff Report

Present:Joseph Belton, Chair, David Rubin, Megan Stevens, Stephen Duke
Absent:Barry Wolff, Stephen Wood, Glyn Cowden.
Staff:Michael Robertson, Julia Copeland. Lynnette Lynes

Mr. Belton called the meeting to order at 6:04 pm.

A.Approval of Agenda
B.Approval of Minutes

Mr. Rubin moved for approval of the agenda and minutes. Mr. Duke seconded the motion. All in favor.

Mr. Belton reviewed the procedures with the public.

D. Public Comment

Mr. Robertson stated that the Zoning Administrator has not made a final determination regarding case S-5-19 and the proper zoning procedure for this case given the Rivertowne planned development; therefore, staff would request a deferral.

Mr. Belton asked if the public comment on that issue should be heard at this time or deferred to the next meeting. Ms. Copeland answered that those present that wished to speak on the matter could be heard, if desired.

Mr. Bruce Koenig, 2853 Rivertowne Parkway, expressed concern with case #S-5-19. He distributed a petition in opposition of the request. He stated that there have been a few occasions where a gas station was proposed in the vicinity but never came to fruition. He stated that a vehicle trip survey was completed and there was a significant amount for Rivertowne Parkway. He expressed concern with the amount of increased traffic on Rivertowne Parkway in an area that is already congested.

Mr. Bill Pesature, 2259 Sandy Point Lane, expressed concern with case #S-5-19, and that if there is a fire or spill, it would block access into and out of Rivertowne. He distributed a copy of the hazard procedures for the Board. He suggested that the quality of life would be significantly affected.

Ms. Debra Sharpe, Albatross Lane, expressed concern with case #S-5-19 and reiterated the concern of Mr. Pesature and that if there is an emergency there is only one way in and out of the neighborhood.

Mr. Louis Milone, 2704 Crooked Stick Lane, expressed concern with case #S-5-19. He thanked the applicant for meeting with the neighborhood. He stated that he is opposed to the gas station. He expressed concern that if there is an emergency event, the road would be blocked and there would be no access because of the amount of traffic and that the traffic congestion continues on Hwy 41. He suggested that the quality of life for the neighborhood would be affected if this request is approved.

Mr. Franklin Housey, 1556 Rivertowne Drive, expressed concern with the amount of traffic during an emergency event because Hwy 41 is a major evacuation route.

Ms. Jill Kragg, 2479 Bergeron Way, expressed concern with case #S-5-19 and the amount of traffic along Rivertowne Parkway and on Hwy 41. She suggested that this request should not be approved until the widening of Hwy 41 is completed. She expressed concern with the queuing of the turn lane into the shopping center and that it is currently not sufficient for the traffic and suggested that the inefficiency would increase with the installation of a gas station.

Ms. Janice Shafer, 2301 Hartsford Bluff Circle, expressed concern with case #S-5-19 and that there could be environmental impact to the installation of a gas station. She expressed concern that the hours of operation and what services would be provided is of concern as well as this could mean a larger impact. She suggested that this information should be provided prior to the request being approved.

Ms. Marcia Rosenberg, 1573 Oakhurst Drive, expressed concern with case #S-5-19. She stated that during the construction of the turn lanes from Rivertowne Parkway onto Hwy 41, the traffic was significantly backed up. She expressed concern with the traffic congestion and the danger of the gas station.

Mr. Harold Will, 4906 Turner Place, expressed concern with safety for case #S-5-19. He stated that the traffic is significant and because of the extreme traffic there are multiple accidents. He suggested that there is a dangerous situation with turning onto Hwy 41. He suggested that no additional businesses or homes should be built on Hwy 41 until the highway is widened. He suggested that constructing a parallel roadway would help to alleviate traffic on Hwy 41.

There being no further comments, Mr. Belton continued with the agenda.

E. General Correspondence

No correspondence.

F. Administration of Oath

Mr. Belton administered the oath to those speaking.

G. Business

Staff Report

1. Case V-10-19, 982-992 Theodore Road, TMS # 614-00-00-614, 615, 616, 617, 618, 619 Appeal from the strict application of §156.303 Development Standards Table, lot width, to maintain existing lots. (Address Revised)

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Chase Payne and Mr. Jason Esposito reviewed the request with the Board.

Mr. Tim Turner, 1016 Theodore, stated that he liveadjacent to the property in question. He suggested that the rules and regulations should be followed and should not be granted the request because of not doing their due diligence. He suggested that they should be held to the same standards as they were.

There being no further comments, Mr. Belton closed public comments.

Ms. Stevens asked about the timeline for annexation. Mr. Esposito answered that they submitted the properties separately because staff was not able to find where the subdivision of the property was recorded. She asked why the newest plat was not submitted with the annexation. Mr. Esposito answered that the process was started in the county.

Mr. Belton asked the reason for denial of the rezoning. Mr. Esposito answered that there was concern with rezoning from CC to R-4.

Ms. Stevens asked about staffs comments on the plat not being recorded. Mr. Esposito answered that he is not sure the reason staff was told this information.

Mr. Belton stated that the applicant should have been aware of the current regulations. Mr. Esposito answered that they asked staff if the lots would meet the lot dimension requirements and were told that they did. Mr. Belton stated that there is a difference of interpretation. Mr. Esposito suggested that they feel that they did their due diligence. Mr. Belton stated that the ordinance is clear. Mr. Payne suggested that that there was a mutual misunderstanding between the applicant and staff. He suggested that the applicant should not be penalized for this mutual error. He stated that the error was not discovered until trying to pull building permits.

Mr. Belton asked the reason for a variance request. Mr. Robertson answered that there was not a Zoning Administrator decision to appeal. He stated that the lots do not meet the minimum lot dimensions and the reason for a variance request.

Ms. Stevens asked about the application for annexation dated Sept 17, 2018. Mr. Esposito answered that he cannot speak to the difference in dates. Ms. Stevens suggested that it is the onus of the applicant to submit all relevant information. She suggested that this could set a precedent for other future properties and expressed concern regarding this.

Mr. Duke suggested that the criteria has not been met. He stated that the annexation request does not mention the other TMS numbers and suggested that if this was a discrepancy, it should have been noted at the time of annexation.

▶ *Mr. Duke moved for denial of the request based on the findings that the application lists the one TMS number and this was how it was recorded. Mr. Rubin seconded the motion. All in favor.*

2. **Case S-4-19, 1321 Belleview Avenue, TMS# 532-06-00-158, Request for a Special Exception in accordance with the standards of §156.325 Principle Use Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow a Bed and Breakfast.**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Alec Graham, applicant reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

▶ *Mr. Rubin moved for approval of the request based on the findings that all criteria has been met. Ms. Stevens seconded the motion. All in favor.*

3. **Case S-5-19, 2035 Hwy 41, TMS# 540-00-00-229, Request for a Special Exception in accordance with River Towne, Planned Development Ordinance, Conditional Use, Automobile Service Station and in accordance with the provisions of 156.411 (A)(3)(a-d).** CORRESPONDENCE

▶ Ms. Copeland stated that staff has some considerations regarding this case and is requesting that the item be deferred.

▶ *Ms. Stevens moved for deferral. Mr. Rubin seconded the motion. All in favor.*

4. **Case V-23-19, 754 Pitt Street, TMS# 532-09-00-245, Appeal for relief from the strict application of §156.313 (E)(3)(c) to allow maximum building area to exceed 5,500 square feet regardless of lot size.**

This item was deferred by the applicant.

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 7:19 pm.

Submitted by,
L. Lynes
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